

P O R T E R | S C O T T

A PROFESSIONAL CORPORATION
Chad S. Tapp, SBN 214898
ctapp@porterscott.com
Tyler J. O'Connell, SBN 346673
toconnell@porterscott.com
2180 Harvard Street, Suite 500
Sacramento, California 95815
TEL: 916.929.1481
FAX: 916.927.3706

Attorneys for Defendants
CSAA INSURANCE EXCHANGE;
CARBONE, SMITH & KOYAMA;
and MICHAEL R. CHAMBERS

ELECTRONICALLY
FILED

*Superior Court of California,
County of San Francisco*

08/11/2026
Clerk of the Court

BY: SANDRA SCHIRO
Deputy Clerk

SUPERIOR COURT OF CALIFORNIA, COUNTY OF SAN FRANCISCO

FRANCISCUS DYLAN ROSARIO,

Plaintiff,

v.

SUBHI ABDELHALIM;
CSAA INSURANCE EXCHANGE;
DOES 1 through 50, inclusive;

Defendants.

Case No.: CGC-25-631801

**MEMORANDUM OF POINTS AND
AUTHORITIES IN SUPPORT OF
DEFENDANTS CSAA INSURANCE
EXCHANGE, CARBONE, SMITH &
KOYAMA, AND MICHAEL R. CHAMBERS'
MOTION FOR ATTORNEYS' FEES AND
COSTS UNDER C.C.P. § 425.16(c)**

Date: September 8, 2026

Time: 9:00 a.m.

Dept: 301

Complaint Filed: December 23, 2025

Amended Complaint Filed: February 25, 2026

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Plaintiff's claims all arise from protected litigation conduct and are squarely subject to the Anti-SLAPP statute. In light the Court's granting of Defendants' Anti-SLAPP motion, Defendants now move for their fees and costs incurred in litigating this case.

II. BRIEF FACTS

Plaintiff has filed this “Independent Action in Equity to Set Aside Judgment for Extrinsic Fraud.” Plaintiff’s allegations focus on Defendants’ litigation activity in defending against Plaintiff’s underlying personal injury case from 2021. That underlying case was submitted to a jury in April 2025, and the jury rendered a defense verdict.

Defendants’ Anti-SLAPP motion is based on the nature of Plaintiff’s allegations as contained in the FAC. Plaintiff’s allegations squarely target Defendants’ litigation conduct all from Plaintiff’s underlying personal injury jury trial—which Plaintiff lost by defense verdict in April 2025. (*O’Connell Decl.*], ¶ 3.)

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1 Prior to filing the Anti-SLAPP motion, Defendants’ counsel informed Plaintiff in writing, and on
2 multiple phone calls, that Defendants would soon be filing an Anti-SLAPP motion should Plaintiff not
3 withdraw the FAC, in its entirety—as the entirety of the purported legal theories in Plaintiff’s FAC focus
4 inextricably on Defendants’ protected litigation conduct. (*O’Connell Decl.*], ¶ 4.) Plaintiff refused to
5 withdraw his FAC, in writing and on two meet and confer phone calls. And Defendants’ Anti-SLAPP
6 motion was properly filed on April 9, 2026. (*O’Connell Decl.*], ¶ 5.)

7 On May 12, 2026, Defendants’ Anti-SLAPP motion came for hearing and the Court granted
8 Defendants’ Anti-SLAPP motion, in its entirety. (*O’Connell Decl.*], ¶ 6, **Ex. A** – *Minute Order Granting*
9 *Anti-SLAPP*.) On August 6, 2026, this Court signed the final Order granting Defendants’ Anti-SLAPP
10 motion in its entirety. (*O’Connell Decl.*], ¶ 7, **Ex. B** – *final Order Granting Anti-SLAPP*.)

11 Defendants had previously attached to Defendants’ Reply to Opposition to Anti-SLAPP, a copy
12 of legal invoicing incurred in this matter, for purposes of attorneys’ fees recovery. That invoicing, attached
13 to Reply, was limited only to those matters directly related to preparing, meet and confer efforts regarding,
14 drafting, filing, and appearing in Court with respect to Defendants’ Anti-SLAPP motion. This created a
15 reduced attorneys’ fees amount when compared to the full amounts billed in legal fees on this case.
16 (*O’Connell Decl.*], ¶ 8.)

17 However, and crucially, Plaintiff has continued to litigate this case—after the Anti-SLAPP
18 ruling—by submitting memoranda, briefs, and very lengthy email correspondences and letters in an effort
19 to challenge this Court’s May 12, 2026 minute order granting Defendants’ Anti-SLAPP motion. Plaintiff
20 has also threatened to file further actions in Contra Costa County, in an effort to circumvent and sidestep
21 this Court’s Anti-SLAPP ruling altogether. Therefore, the amount of attorneys’ fees requested in this
22 motion also accounts for Plaintiff’s post-Anti-SLAPP Order conduct. (*O’Connell Decl.*], ¶ 9.)

23 After a review and analysis of controlling statutory and case authorities, Defendants now submit a
24 revised legal fees invoicing, which no longer reduces the recoverable attorneys’ fees. (*O’Connell Decl.*],
25 ¶ 10.)

26 Defendants’ attorney’s fees in this action are invoiced at a billable rate of \$210 per hour and
27 counsels spent 169.30 hours litigating this case in its entirety, including preparing Defendants’ Anti-
28 SLAPP motion, supporting Declarations, review and analysis of this motion, correspondences with clients

1 and Plaintiff, gathering and marking exhibits, and preparing for and attending hearings on multiple
2 motions. Hence, in total Defendants’ attorney’s fees expended in this case are: \$35,973.00. (*O’Connell*
3 *Decl.*], ¶ 11, Ex. C.) Defendants’ litigation costs total: \$1,137.46. (*O’Connell Decl.*], ¶ 12, Ex. D.)

4 In total, Defendants incurred attorneys’ fees and costs in this matter, from Plaintiff’s filing through
5 July 10, 2026, totaling \$37,110.46. (*O’Connell Decl.*], ¶ 13, Exs. C; D.)

6 Defendants will concurrently file a Memorandum of Costs, which will list the same cost amount
7 sought here, totaling: \$1,137.46. (*O’Connell Decl.*], ¶ 14.)

8 **III. LEGAL STANDARD & ARGUMENT**

9 The California State Legislature has found and determined “that there has been a disturbing
10 increase in lawsuits brought primarily to chill the valid exercise of the constitutional rights of freedom of
11 speech and petition for the redress of grievances. The Legislature finds and declares that it is in the public
12 interest to encourage continued participation in matters of public significance, and that this participation
13 should not be chilled through abuse of the judicial process. To this end, this section shall be construed
14 broadly...

15 (c) a prevailing defendant on a special motion to strike shall be entitled to recover that defendant's
16 attorney’s fees and costs.”

17 “Attorney fees are **mandatory** to the prevailing defendant and the amount awarded to a defendant
18 on a successful anti-SLAPP motion is within the discretion of the trial court.” (*Trapp v. Naiman* (2013)
19 218 Cal.App.4th 113, 122.) Further, “trial courts are to use the lodestar method when determining an
20 award of attorney fees under the anti-SLAPP statute. This approach ensures that the trial court’s analysis
21 is objective and that the amount awarded is not arbitrary. Under the lodestar method, the trial court
22 tabulates the attorney fee touchstone, or lodestar, by multiplying the number of hours reasonably expended
23 by the reasonable hourly rate prevailing in the community for similar work. (*Frym v. 601 Main Street*
24 *LLC* (2022) 82 Cal.App.5th 613, 620-621) (*internal quotations omitted.*)

25 Indeed Code Civ. Proc. § 425.16(c) does not limit attorneys’ fees recover to only those amounts
26 incurred in preparing and filing the Anti-SLAPP motion. The Code provides for “defendant’s attorney’s
27 fees and costs,” in full. Code Civ. Proc. § 425.16(c). Here, Defendants’ counsel expended a total of 169.30
28 hours—including two (2) additional hours in anticipation of the hearing on this motion—litigating this

1 case, up to July 10, 2026.¹ Defendants’ counsel’s hourly rate was \$210 per hour. This hourly rate is
2 reasonable given the prevailing hourly rate in the San Francisco / Bay Area community.

3 Further, the number of hours is justified, and reasonably expended, given multiple factors. First,
4 Plaintiff’s FAC names multiple parties, and these hours were expended on behalf of the three (3) moving
5 Defendants. Second, Plaintiff’s nearly 30-page FAC contains a wide-ranging series of allegations, which
6 required Defendants’ counsel to peruse an entire underlying Court record, from Plaintiff’s personal injury
7 jury trial. The underlying record was a 4-year long litigation, culminating in a 4-month long jury trial
8 (with multiple continuances and recesses). That underlying record was very lengthy and took considerable
9 time to parse through for evidence in support of the Anti-SLAPP motion. Third, Defendants’ counsel also
10 engaged in extensive meet and confer efforts with Plaintiff in hopes of avoiding incurring these fees,
11 which took additional time. Fourth, Plaintiff made this case more time consuming in multiple ways
12 including through his filing of many, many motions, “Bench Briefs,” “Supplemental Oppositions,” and
13 other filings in violation of the Code and Rules of Court. Plaintiff also served an incredibly lengthy series
14 of discovery requests, correspondences, letters, emails, and even referrals to the State Bar, California
15 Department of Insurance, California DOJ Office of Civil Rights, and other public entities. Plaintiff
16 admitted to using artificial intelligence large language models (aka: chatbots) in drafting all these
17 voluminous and largely frivolous filings and service documents. This created a veritable deluge of paper,
18 upon Defendants’ counsel’s office, seemingly by design, to consume as much of Defendants’ counsel’s
19 time as possible.

20 Fifth, and crucially, Plaintiff has continued to litigate this case—after the Anti-SLAPP ruling—by
21 submitting memoranda, briefs, and very lengthy email correspondences and letters in an effort to challenge
22 this Court’s Order granting Defendants’ Anti-SLAPP motion.² Plaintiff has also threatened to file further
23 actions in Contra Costa County, in an effort to circumvent and sidestep this Court’s Anti-SLAPP ruling
24 altogether. Therefore, the amount of attorneys’ fees requested in this motion also accounts for Plaintiff’s
25 post-Anti-SLAPP Order conduct. Finally, Defendants’ costs are all reasonable and reflective of the filing,
26 service, and mailing costs incurred in this case.

27 ¹ Post-July 10, 2026, Plaintiff has continued to send harassing email correspondences wherein he threatened further
28 litigation, discovery, and motion practice. Plaintiff’s actions have continued right up to the date of filing this motion.

² Plaintiff’s Motion for Reconsideration of the Anti-SLAPP ruling was denied on August 11, 2026, in a tentative ruling,
which Plaintiff did not contest or request argument.

1 Defendants are entitled to all attorneys' fees and costs incurred in litigating this completely
2 meritless case in light of this Court granting Defendants' Anti-SLAPP motion.

3 **IV. CONCLUSION**

4 Defendants respectfully request this Court enter an Order awarding Defendants' their attorneys'
5 fees incurred in litigating this case, as against Plaintiff, which total **\$35,973.00**, as well as Defendants'
6 costs, which total **\$1,137.46**, in light of this Court's August 6, 2026 Order granting Defendants' Anti-
7 SLAPP motion. In sum, Defendants' fees and costs sought herein total: **\$37,110.46**.

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10 Dated: August 11, 2026

PORTER SCOTT
A PROFESSIONAL CORPORATION

11
12 *Tyler J. O'Connell*

13 By _____
14 Chad S. Tapp
15 Tyler J. O'Connell
16 Attorneys for Defendants
17 CSAA INSURANCE EXCHANGE;
18 CARBONE, SMITH & KOYAMA;
19 and MICHAEL R. CHAMBERS
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PROOF OF SERVICE

At the time of service, I was over 18 years of age and not a party to this action. My business address is 2180 Harvard Street, Suite 500, Sacramento, California 95815.

On August 11, 2026, I served the following document: **MEMORANDUM OF POINTS AND AUTHORITIES IN SUPPORT OF DEFENDANTS CSAA INSURANCE EXCHANGE, CARBONE, SMITH & KOYAMA, AND MICHAEL R. CHAMBERS' MOTION FOR ATTORNEYS' FEES**

	BY REGISTERED/CERTIFIED MAIL, RETURN RECEIPT REQUESTED: I caused to be served the above referenced document(s) by registered or certified mail, return receipt requested, with the United States Postal Service, in a sealed envelope with postage fully prepaid.
	BY PERSONAL SERVICE: I caused such document to be personally delivered to the person(s) addressed below. (1) For a party represented by an attorney, delivery was made to the attorney or at the attorney's office by leaving the documents, in an envelope or package clearly labeled to identify the attorney being served, with a receptionist or an individual in charge of the office, between the hours of nine in the morning and five in the evening. (2) For a party, delivery was made to the party or by leaving the documents at the party's residence with some person not younger than 18 years of age between the hours of eight in the morning and six in the evening.
	BY OVERNIGHT DELIVERY: I enclosed the documents in an envelope or package provided by an overnight delivery carrier and addressed to the person(s) listed below. I placed the envelope or package for collection and overnight delivery at my office or a regularly utilized drop box of the overnight delivery carrier.
X	BY ELECTRONIC TRANSMISSION: By electronically serving the document(s) to the electronic mail address set forth below on this date before 11:59 p.m. pursuant to Code of Civil Procedure section 1010.6(a)(2), (4) and (5).

Addressed as follows:

PLAINTIFF, IN PRO PER

Franciscus Dylan Rosario
7624 Melody Drive
Rohnert Park, CA 94928
soltrinox@gmail.com

I declare under penalty of perjury under the laws of the State of California that the foregoing is true and correct. Executed at Shingle Springs, California on August 11, 2026.

Monique Schubert

Monique Schubert